



United States
Attorney's Office
District of Massachusetts



National Sales Director for New York-Based Mobile Diagnostic Company Charged in Kickback Scheme

Tuesday, February 25, 2025

For Immediate Release

U.S. Attorney's Office, District of
Massachusetts

BOSTON – A New York national sales director was charged on Feb 20, 2025 in federal court in Boston for allegedly conspiring to offer and pay kickbacks to doctors in exchange for ordering medically unnecessary brain scans.

David Fuhrmann, 59, of Port Jefferson, N.Y. was charged and has agreed to plead guilty to one count of conspiracy to violate the Anti-Kickback Statute. A plea hearing has not yet been scheduled by the Court.

According to the charging documents, it is alleged that from at least June 2013 through at least September 2020, Fuhrmann conspired with others, including two managers for a mobile medical diagnostics company that performed transcranial doppler (TCD) scans, to enter into kickback agreements with various doctors. It is alleged that Fuhrmann and his co-conspirators agreed to offer and pay doctors kickbacks based on the number of TCD ultrasounds the doctors ordered. It is further alleged that some doctors were paid in cash and others by check. Fuhrmann and his co-conspirators allegedly created rental and administrative service agreements. On paper, these agreements made it appear as if doctors were compensated for the TCD company's use of space and administrative resources based on fair market value and not based on the volume or value of referrals. These agreements were allegedly shams that hid the true nature of the arrangement of paying per test.

According to the charging documents, the scheme resulted in fraudulent bills of approximately \$70.6 million to Medicare.

The charge of conspiracy to violate the Anti-Kickback Statute provides for a sentence of up to five years in prison, three years of supervised release and a fine of up to \$250,000. Sentences are imposed by a

federal district court judge based upon the U.S. Sentencing Guidelines and statutes which govern the determination of a sentence in a criminal case.

United States Attorney Leah B. Foley; Roberto Coviello, Special Agent in Charge of the U.S. Department of Health and Human Services, Office of Inspector General; Jodi Cohen, Special Agent in Charge of the Federal Bureau of Investigation, Boston Division; Thomas Demeo, Acting Special Agent in Charge of the Internal Revenue Service’s Criminal Investigation Division, Boston Field Office; Kelly M. Lawson, Acting Regional Director, U.S. Department of Labor, Employee Benefits Security Administration, Boston Regional Office; Ketty Larco-Ward, Inspector in Charge of the U.S. Postal Inspection Service, Boston Division; and Christopher Algieri, Special Agent in Charge of the U.S. Department of Veterans Affairs Office of Inspector General, Northeast Field Office. Assistant U.S. Attorneys Howard Locker and Mackenzie Queenin of the Health Care Fraud Unit are prosecuting the case.

he details contained in the charging documents are allegations. The defendant is presumed innocent unless and until proven guilty beyond a reasonable doubt in a court of law.

Updated February 25, 2025

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